Child Care Licensing Overview

A child care or early learning program is an educational program, which is also a small business. The Washington State Department of Children, Youth, and Families (DCYF) works to support potential new child care providers who are considering licensing. This guide contains foundational child care licensing information.

Program Types

There are different types of licensed child care programs in Washington state:

Family home early learning programs provide child care in their family living quarters for 12 or fewer children.

Child care centers provide care for a group of children ages birth through 12 years old.

School-age programs provide care for children ages 5 through 12 years old when children are not attending school.

Outdoor Nature-Based programs provide care to preschool or school-age children in an outdoor, natural space and teach a nature-based curriculum.

Note: Military and Tribal programs may be certified or certified for payment only, when certified by the federal Department of Defense or licensed by an Indian tribe, nation, or other organized community of Indians.

DCYF Licensing Rules

The regulations for licensed child care are Washington Administrative Code (WAC), and can be found at **https://apps.leg.wa.gov/wac/default.aspx?cite=110**

- Family Home and Center WAC is 110-300
- School-Age WAC is 110-301
- Outdoor Nature-Based WAC is 110-302

Things to consider before becoming licensed:

- **Need:** Do you know if there is a shortage of child care options in your community? You may be able to find out about local supply and demand by contacting Child Care Aware of WA at **https://childcareawarewa.org**
- **Business Licenses**: In Washington state a business license is required. Learn more at **www.business.wa.gov**
- **Space:** Are you able to open your home or buy/rent a facility to provide child care? DCYF's Site Analysis and Feasibility webpage at **https://dcyf.wa.gov/services/early-learning-providers/facility-development/facility-dev-process/site-analysis**, provides information and resources to help determine the suitability of a site for child care licensing. This includes, but is not limited to, site location, legal and timing issues, zoning, and permitting.

Note: The number of children a program may be licensed to care for is based on a number of factors and is determined at the initial licensing inspection.

- **Location:** Center and school-age programs are required to obtain a type E or I-4 Certificate of Occupancy from the local government. How long it will take to obtain an E or I-4 Certificate of Occupancy will vary by location.
- **Local Considerations:** Check in with the city or county (depending on which jurisdiction applies to the facility location), and the Home Owners Association to learn about any local codes or ordinances that will apply to the facility.

- **Building Codes:** Hiring an architect familiar with child care when building or renovating the child care facility helps to ensure the space will be viable for child care. When selecting an architect or contractor it is a good idea to ask about their familiarity with building codes, WAC 110-300/WAC 110-301, and DCYF procedures. Get more information at **www.dcyf.wa.gov/services/early-learning-providers/facility-development/facility-dev-process/design**
- **Funding Opportunities:** Startup costs for licensed child care will be unique for each program. There may be grant and loan opportunities available to support opening and operating a child care program. It may be worth the time and effort to look into federal, state, city, local, and private funding sources. Here are a few websites you might start with:
  - DCYF Child Care Grant Opportunities **www.dcyf.wa.gov/services/early-learning-providers/child-care-grants**
  - Department of Commerce Grants and Contract Opportunities **www.commerce.gov/work-with-us/grants-and-contract-opportunities**
  - Administration for Children and Families Grants and Funding/Office of Child Care **www.acf.hhs.gov/grants**
  - Government Grants **www.governmentgrants.us/child-care-grants**
  - Washington Grant Watch **https://washington.grantwatch.com/cat/26/preschool-grants.html**
  - Washington Early Learning Loan Fund (WELL) **https://wcra.net/loan-programs/washington-early-learning-loan-fund-well**
- **Head Start:** Head Start is a federally funded program for low-income families. Head Start serves children ages 3 and 4 years, and Early Head Start serves infants and toddlers. As funding becomes available, the Office of Head Start will issue a funding opportunity allowing you to apply for a grant to become a Head Start provider. Learn more at **https://eclkc.ohs.acf.hhs.gov/grant-application**
- **ECEAP:** ECEAP (pronounced "E-Cap") is the Early Childhood Education and Assistance Program funded by Washington state for children and families farthest from opportunity. ECEAP serves children ages 3 and 4 years. Contractors provide 3-, 6-, and 10- hour models of programming. Child care providers may opt to become an ECEAP contractor or subcontractor with a current ECEAP contractor. Learn more at **www.dcyf.wa.gov/services/early-learning-providers/eceap/expansion-of-services**
- **Early ECEAP:** Is birth to 3 programming funded by Washington state for infants and toddlers farthest from opportunity. This programming serves children who are 12 months old to 3 years of age. Contractors provide 10 hours of year-round care in this model. Child care providers may opt to contract as an Early ECEAP contractor or subcontract with a current ECEAP contractor. Learn more at: **www.dcyf.wa.gov/services/early-learning-providers/eceap/expansion-of-services** and

  www.dcyf.wa.gov/services/early-learning-providers/eceap/early-eceap
- **Serving Low-Income Children (Subsidy):** If you plan to serve children who may be eligible to receive subsidy, being licensed or "certified for payment only" is required. Learn more at **www.dcyf.wa.gov/services/earlylearning-childcare/getting-help/wccc**

- **Staff Qualifications:** Staff qualifications ensure professionals have the training and knowledge for their role. Staff generally have five years from their date of hire or promotion to meet the full educational qualifications, and there are multiple pathways to meet the requirements. Learn more about staff qualification requirements at:

Family Home and Center
www.dcyf.wa.gov/services/early-learning-providers/qualifications/child-care-providers

School-age
www.dcyf.wa.gov/services/early-learning-providers/qualifications/school-age

Outdoor Nature-Based
www.dcyf.wa.gov/services/early-learning-providers/qualifications/onb

Do you need to be licensed? The answer is usually yes, but it depends. According to RCW 43.216.010 (1): Any person or entity that provides child care services outside a child's home must be licensed by DCYF unless they are exempt. More information about exempt programs is located in RCW 43.216.010 (2). **https://app.leg.wa.gov/RCW/default.aspx?cite=43.216.010**

- **The licensing process:** The child care and early learning licensing process begins with an online orientation. The orientation covers information such as Washington's quality rating improvement system and the licensing application process.

  Completion of the online orientation is required prior to submission of an application for licensure. The application itself requires submission of multiple documents, such as the child care program's policies and procedures.

  Once a completed application is received, DCYF has 90 days to issue an initial license, or deny the application. An onsite inspection is required, and compliance with applicable WAC must be verified prior to issuance of a license.

  Learn more at www.dcyf.wa.gov/services/early-learning-providers/licensed-provider/licensing-process

Pre-Licensing Support: DCYF's Pre-Licensing Unit will provide technical assistance and support to help potential providers navigate the facility development process and prepare for submission of the child care licensing application. If you would like pre-application assistance, or have questions about child care licensing, please contact **dcyf.welcome@dcyf.wa.gov**.

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